

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 27, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Roybal, and pursuant to support received by Mr. Shanor and Mr. Cook, agenda items #17(d) and #17(e) were removed from the Consent Agenda. Mr. White moved to approve remaining items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

Comments were made related to public comment on agenda items. Michael Skinner provided information on the raising hand function using WebEx.

[CA] Minutes from Regular Meeting of the Governing Body on April 13, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule. Vicki Nemecek, Director of Public Works, advised she was available for any questions and recommended approval of the ordinance. Mr. Luna confirmed he continues to oppose increases to the solid waste fees. Reporting for Finance Committee, Mr. Luna moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Luna voting “no”. (#4304)

ORDINANCE – 1st READING – Amending Chapter 10.56, Handicapped Parking Spaces, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming (Sponsor – Mr. White) – referred to Finance Committee.

ORDINANCE – 1st READING – Approving and establishing an amendment to the Temporary Permit Process contained in Title 5 of City Code (Sponsors – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor & Mr. White) – referred to Finance Committee.

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Wyoming Association of Sheriffs and Chiefs of Police/Wyoming Department of Transportation, Highway

Safety Program, Selective Traffic Enforcement Grant Funding (Highway Safety Selective Traffic Enforcement Grant). Motion (per Consent Agenda) carried. (#6048)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Wyoming Department of Transportation, Highway Safety Program, Grant Funding for the City's Mobile D.U.I. Command Post (Highway Safety Mobile Command Grant). Motion (per Consent Agenda) carried. (#6049)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, 15th Filing, a replat of all of Lots 2-10, Block 1, Saddle Ridge, 13th Filing, Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Saw Buck Road and Red Feather Trail). Motion (per Consent Agenda) carried. (#6050)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Westby Edge, a replat of Lots, 5, 6, 7 and 8, Block 271, Original City, Cheyenne, Laramie County, Wyoming (located at the northwest corner of W. 20th Street and Bent Avenue). Motion (per Consent Agenda) carried. (#6051)

[CA] RESOLUTION – Granting an exception to the '201 Agreement' for the owner of the property located 7511 Tate Road to allow repair or replacement of an on-site septic system located within Laramie County. Motion (per Consent Agenda) carried. (#6052)

RESOLUTION – Providing for Public Safety Services at Cheyenne Frontier Days and Compensation to the City. Tom Hirsig, CEO of CFD, voiced appreciation to those involved with preparation and compromising efforts. Reporting for the Public Services Committee, Mr. Case advised this item was reviewed under other items for the agenda at the April 21, 2020 Public Services Committee meeting, therefore provisions of Title 2 of City Code have been met. Mr. Case move to adopt, seconded by Mr. Luna. Mr. Case moved to amend by substitute dated April 27, 2020, seconded by Dr. Rinne. Mr. Case advised the substitute clarifies language related to the technicalities as to what the Memorandum of Understanding (MOU) will accomplish. Chief of Police Brian Kozak expressed support for the proposed substitute which allows for staffing considerations, provides collaboration with Cheyenne Frontier Days (CFD) and protects City liability with the annual event. Chief Kozak expressed appreciation to Tom Hirsig and Pat Crank for working with the City on the details of the MOU. Mr. Hirsig advised he supports the substitution. Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Mr. Hirsig, upon inquiry, reported CFD has not made a final determination whether the annual CFD event will take place this year due to the Covid-19 pandemic. Mr. Case voiced opposition to the inquiry of whether CFD will occur this year as he believes the comments weren't germane to the MOU topic. Mayor Orr overruled Mr. Case's comment. Mr. Hirsig further advised he doesn't have an answer as to when an announcement would take place, noting CFD will continue to work with the City, County and State Health departments for guidance. Upon further inquiry, Mr. Hirsig advised he anticipates a decision will be made by or during the first week of June. Concern was expressed relating to the process utilized to consider the Resolution and MOU noting the item did not go before the Finance Committee and was brought up under Public Services Committee other items for the agenda, limiting the public's ability to participate and comment.

Mr. Case advised the issue has been in need of resolution for months whether CFD happens this year or not, noting the MOU is for a 5 year term. Comments were made regarding established processes and lack of communication between Council members. Upon inquiry, Michael O'Donnell, City Attorney, advised the practice is not ideal in terms of binding future governing bodies relating to financial decisions. Mr. O'Donnell reported it is acceptable for future amendments and reconsideration by future governing bodies, noting the proposed Resolution and MOU contain language which allows CFD or the City to dissolve the agreement. Upon inquiry, Mayor Orr advised budgetary decisions are made by recommendations of the City Treasurer which are either approved or denied by the governing body. Comments were voiced that not all members of the governing body and City staff members received notification of the proposal in the Resolution or MOU. Mr. Case moved to call for the question, seconded by Mr. Luna. Upon inquiry, Kris Jones, City Clerk, advised a motion to call for the question is non-debatable and requires a 2/3 affirmative vote of those present. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr and Mr. Shanor voting "no". Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn and Mayor Orr voting "no". (Res. #6053/MOU #7169)

[CA] RESOLUTION – In appreciation of the teachers of Laramie County School District Number One and Laramie County Community College for their exceptional efforts during the Covid-19 Pandemic (Sponsor – Mr. Laybourn) – referred to Public Services Committee.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Willow Heights, a replat of Lot 14, Block 5, Homestead Addition, First Filing Replat, Cheyenne, Laramie County, Wyoming (located south of Homestead Avenue, between Henderson Drive and Hanson Street) (Sponsor – Mr. Case) – referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center (General Fund). Motion (per Consent Agenda) carried. (# 7165)

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex (General Fund). Motion (per Consent Agenda) carried. (#7166)

[CA] Grant agreement between the City of Cheyenne, Youth Alternatives, and the Corporation for National and Community Service, for the FY 2020 Foster Grandparent Program (FGP) Replacement Sponsor Program (Foster Grandparent Grant). Motion (per Consent Agenda) carried (revenue to the City in the amount of \$318,375.00). (#7167)

Agreement between the City of Cheyenne, Laramie County, and Christensen's Inc., granting an access easement for use and maintenance of an access road and drainage conveyance across land owned by the City (revenue to the City). Mr. Luna moved to approve, seconded by Mr. White. Mr. Luna moved to postpone to May 5, 2020, seconded by Mr. Cook. Motion to postpone carried. Voting "yes" – all members of the governing body. (Clerk's note: clarification of postponed date on following agenda item)

Agreement between the City of Cheyenne, Laramie County, and Christensen's Inc., for driveway and drainage maintenance of an access road and drainage conveyance across land owned by the City. Mr. Luna moved to approve, seconded by Mr. Roybal. Mr. Luna moved to postpone to May 11, 2020, seconded by Mr. Cook. City Clerk Kris Jones clarified both agenda items #17(d) and #17(e) will be postponed to May 11th. Motion to postpone carried. Voting "yes" – all members of the governing body.

[CA] Development Agreement between the City of Cheyenne and Leader Custom Homes, LLC, for regrading, installation and construction of sidewalks, utilities, drainage features and landscaping on City property in conjunction with development of the Willow Heights Subdivision – referred to Finance Committee.

[CA] Maintenance Agreement between the City of Cheyenne and Leader Custom Homes, LLC, for maintenance of improvements made upon land owned by the City in the area of the Willow Heights Subdivision – referred to Finance Committee.

[CA] Consideration of Modification #3 to Contract #6892 between Noel Griffith Jr. & Associates Architects for Additional Design Services and Historical Consulting for finish of the second floor of the Cheyenne Municipal Court Project (Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$16,120.00). (#6892)

[CA] Contract Modification #2 to Contract #7082 between the City of Cheyenne and Scotch Boy, Inc. for the Irrigation Controllers and Equipment Upgrade Project. Motion (per Consent Agenda) carried. (#7082)

[CA] Contract Modification #1 to Contract #6798 between the City of Cheyenne and Trihydro Corporation, Laramie, Wyoming, for Happy Jack Landfill Environmental Monitoring Services (Solid Waste Fund) -- referred to Finance Committee.

[CA] Contract Extension Agreement to the Community Counseling and Intervention Services Agreement (City Contract No. 6266) between the City of Cheyenne Youth Alternatives Division and Laramie County School District Number One (revenue to the City) – referred to Finance Committee.

[CA] Consideration of Bid #E-15-20 for a contract between the City of Cheyenne and Pine Bluffs Gravel & Excavating for furnishing Compost Facility Waste Hauling (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Pine Bluffs Gravel & Excavating in an amount not to exceed \$158,597.13). (#7168)

[CA] Consideration of Bid #S-9-20 for a contract between the City of Cheyenne and 4 Quarters Excavation & Development, for the Henderson Greenway Connector Project (Specific Purpose Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement of Public Hearing was made to be held May 11, 2020 at 6:00 p.m. via electronic conference meeting, in Cheyenne, Wyoming, for a transfer of retail liquor license application filed with the City Clerk's Office for Ace Majestic, Inc. d/b/a Redwood Lounge and Package Liquors, 2105 E. Lincolnway, Cheyenne, Wyoming (license currently held by Deep South LLC d/b/a Redwood Lounge)

Under other business:

Mr. Luna requested announcement of the following items –

ORDINANCE - approving and establishing amendments to various portions of Title 6 of City Code to redefine animal owner and amend fee structure – referred to Finance Committee.

RESOLUTION - recommending a salary reduction for the City's Governing Body – referred to Finance Committee.

Mayor Orr commented on positive notes and comments she has received from the community recently in appreciation of the Governing Body and City employees.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:44 p.m.

Submitted by,



Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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